

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4335

By: Moore

AS INTRODUCED

An Act relating to animals; providing that a county, municipality, or an agency shall have certain limited authority over retail pet shops; amending 4 O.S. 2021, Section 30.8, which relates to animal shelter operators and commercial pet breeders; changing timeline for certain required notices; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 30.17 of Title 4, unless there is created a duplication in numbering, reads as follows:

A county or municipality, or any agency thereof may:

1. Adopt or enforce rules, administrative regulations, codes, or ordinances relating to the operations of a retail pet shop; provided the pet shop is in compliance with the Commercial Pet Breeders and Animal Shelter Licensing Act and other applicable rules, regulation, codes, or ordinances; and

2. Regulate and inspect retail pet stores but may not ban or otherwise effectively prohibit a retail pet shop or retail pet shop

owner for selling dogs and cats within the county or municipality unless the shop or owner has received three or more convictions over five (5) years for violating the Commercial Pet Breeders and Animal Shelter Licensing Act.

SECTION 2. AMENDATORY 4 O.S. 2021, Section 30.8, is amended to read as follows:

Section 30.8. A. An animal shelter operator or commercial pet breeder who is not in violation of the Commercial Pet Breeders and Animal Shelter Licensing Act or any rule adopted under the Commercial Pet Breeders and Animal Shelter Licensing Act may renew the license of the person by:

1. Submitting a renewal application to the Oklahoma Department of Agriculture, Food, and Forestry on the form prescribed by the Department;

2. Complying with any other renewal requirements adopted by the Department; and

3. Paying the required fee.

B. Any person who fails to apply for a renewal in a manner prescribed by the Department, and whose license has expired, may not engage in activities that require a license until the license has been renewed.

C. Not later than ~~sixty (60)~~ ninety (90) days before the expiration of the license, the Department shall send written notice of the impending license expiration to the animal shelter operator

1 or commercial pet breeder at the last-known address according to the
2 records of the Department.

3 SECTION 3. This act shall become effective November 1, 2026.

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